

PURCHASE ORDER

PO Number	5500011036 / TG
PO Date	31.03.2025
Vendor Ref.	
ARAI Ref.	20012663
Buyer E-Mail ID	kale.pur@araiindia.com
Department	5016/TG Kothrud/(TR.No.)1243

Vendor	Bill To & Ship To
Vendor No:E0000125 ESDS Software Solution Pvt. Ltd. Plot No. B- 24 & 25, NICE Industrial Area, Satpur MIDC, Nashik-422007,Maharashtra,India. Contact No: 7798367747 E-Mail: pooja.singh@esds.co.in GST No:27AABCE4981A1ZV PAN:AABCE4981A	The Automotive Research Association of India S.no.102, Vetel Hill, Off Paud Road, Pune 411038 Phone: 020-3023 1111 Fax: 020-3023 1104 ARAI GST No: 27AAATT1989P1ZL Initiator : SAYALI B / 1243

ALL TERMS AND CONDITION WILL BE AS PER TENDER# GEM/2025/B/6057570.

Sr.No	Description	Curr.	Price	Amount
001	Cloud Hosting 01-Apr-25 o 31-Mar-26 *pricing details mentioned in the Annexure-I Expected date of completion 31.03.2026	INR	1,179,144.00	1,179,144.00

	Total (INR)	1,179,144.00
	Discount	0.00
	Post Disc.Total	1,179,144.00
	IGST	0.00
	CGST	106,122.96
	SGST	106,122.96
Grand Total in (INR):	Grand Total	1,391,389.92

THIRTEEN LAKH NINETY ONE THOUSAND THREE HUNDRED EIGHTY NINE RUPEES NINETY TWO PAISE ONLY

Terms and Conditions

Payment Term: 100% BASIC WITHIN 30 DAYS FROM DELIVERY/RECEIPT OF MATERIAL/ INVOICE. GST AMOUNT WILL BE RELEASED AFTER MATCHING OF INVOICE WITH GSTR2B.

RTGS Payment will be issued to IFSC- UTIB0001636, Bank Name: AXIS BANK, BANK A/C No: 918030109668405.

LD clause: In case delivery is not effected as specified, LD @ ½% for every week of delay subject to a max of 5% of total PO value will be charged.

Other Terms and Conditions

Prices are firm and fixed till execution of purchase order & no escalation whatsoever will be allowed for the agreed scope of supply/service
SELLER must submit order acceptance within 7 working days from issue of PO, failing which it will be deemed that the PO is accepted unconditionally.

The supplier / contractor should abide by all the applicable safety rules & regulation norms.

In case of service purchase order, supplier to ensure no damage to our equipment/instrument.

In case of service purchase order, ESI & PF formalities are to be completed by supplier prior to start the work execution.

"Statutory & regulatory compliance: The supplier should comply with the environmental legislation as applicable."

INVOICE :

(i) Vendor shall submit invoice / bill in duplicate mentioning our Purchase Order Number / Date / Challan No. / L.R. No. / R.R. No. etc. within 7 days from invoice date. Vendor shall check description, UoM, Qty, HSN / SAC, Tax% of Invoice with respect to PO and Invoice shall contain ARAI GSTN, Vendor GSTN, PAN, Bank details. The invoice / bill shall be duly stamped and signed / digitally signed. Vendor shall submit copy of e-Invoice (with legible / scannable QR code), wherever applicable, as per Govt. Notification.

(ii) Submission of Material Invoice / Bill for ARAI Kothrud with material to Consignee/Reporting Officer: Shri Ravindra Subhash Kulkarni, ARAI # Stores, S. No. 102, Vetel Hill, Off Paud Road, Kothrud, Pune # 411038. Phone: 020-30231670 / 67621670, Email: kulkarni.sto@araiindia.com

(iii) Submission of Material Invoice / Bill for ARAI-Chakan with material to Consignee/Reporting Officer: Shri Prashant P. Kathe, ARAI # HTC Stores, Email: kathe.sto@araiindia.com

(iv) Submission of Service Invoice / Bill for ARAI Kothrud and Chakan to Purchase Officer: Shri Sandip Surendra Sabnis, ARAI # Purchase, S. No. 102, Vetel Hill, Off Paud Road, Kothrud, Pune # 411038. Phone: 020-30231660 / 67621660, Email: sabnis.pur@araiindia.com

GST :

(i) GST Tax Invoice shall either physically signed copy or digitally signed as required under the Sec 31 to 34 of the CGST Act 2017 read with CGST Rules relating to Tax Invoice. GST Tax Invoice or Debit or Credit note for supply of Goods or service or both shall contain all the requirements as mandated under Section 31 to 34 of the CGST Act. Vendor shall provide all necessary inputs, relating to Tax Invoice, Credit and Debit Note, as per CGST / SGST / IGST / UTGST Act and amendments from time to time. For GST payment, matching the invoices uploaded by the vendor on GST Portal is necessary.

(ii) Vendor shall agree to ensure correct, accurate and matched invoices and Returns uploading on GST Portal within due dates, as per specified GST Act.

(iii) Basic Price shall not include any taxes such as CGST, SGST, IGST and UTGST.

(iv) In view of Anti Profiteering Provisions, the reduction in the price has to be passed to us.

(v) E-way Bill provisions as notified are to be complied with.

(vi) INDEMNIFICATION: The Vendor agrees for recovery made by us of any tax amount from him on account of any refusal of Input Tax Credit to us for any deeds which deprives us from availing the eligible credit.

Refer Annexure-II for General terms and conditions.

This being system generated PO, signature not required.

ANNEXURE-I

Purchase Order:5500011036

ALL TERMS AND CONDITION WILL BE AS PER TENDER# GEM/2025/B/6057570.

SrNo	Sub Lno.	Service Code/Description	Quantity	UOM	Price/Unit	Gross Price	IGST	CGST	SGST	Net Price
1	1	1308 Advertisement Charges SAC:9983(CGST-Rate: 9% SGST-Rate: 9%)	1.000	EA	1,179,144.00	1,179,144.00	0.00	106,122.96	106,122.96	1,391,389.92
		Cloud Hosting Services Charges for TechNovuus for 01-Apr-2025 to 31-Mar-2026								

Total (INR) 1,179,144.00

Discount 0.00

Post Disc.Total 1,179,144.00

IGST 0.00

CGST 106,122.96

SGST 106,122.96

Grand Total in (INR):

Grand Total 1,391,389.92

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ANNEXURE-II

TERMS & CONDITIONS FOR PURCHASE ORDER

1.PRICE:

The purchase order price shall remain firm till the execution of the complete order and shall not be subjected to any increase or escalation whatsoever.

2.DELIVERY:

2.1 Delivery schedule is the essence of the order which has to be adhered strictly.

2.2 We reserve the right to cancel the order partially or fully if deliveries are not effected as per agreed schedule.

2.3 All deliveries will be at ARAI stores between 9.00 a.m. to 1.00 p.m. and 1.30 p.m. to 4.30 p.m.

2.4 Wherever necessary calibration certifications traceable to National / International Standards must be submitted, at the time of delivery.

2.5 VENDOR shall ensure that all dispatched material should have identification tag on each item. Identification tag should contain following details:

- Purchase Order Number with Line Number (eg. PO No. xxxxxxxxx - PO Line Item No. 00xx)
- SAP Material code & Item Description
- Supplied Total Quantity with UOM
- Vendor's Challan Number with Line Number

2.6 In case of Vendor fail to deliver materials strictly within the delivery schedule, company shall have right to ask them to dispatch the same by any costlier mode of transport. The entire additional expenditure involved will therefore, have to be borne by the VENDOR

3.PACKING & FORWARDING:

3.1 Charges towards Packing, Forwarding and Loading at VENDOR's / SUB-VENDOR's Shop / Warehouse are included in basic Order price.

3.2 Unloading of GOODS at ARAI shall be done by ARAI.

3.3 Packing & Preservation: Material should be supplied in proper wooden boxes with rust preventive, bubble sheet packing for all components for proper & damage free transportation.

4.INVOICE:

4.1 Vendor shall submit invoice / bill in duplicate mentioning our Purchase Order Number / Date / Challan No. / L.R. No. / R.R. No. etc. within 7 days from invoice date. Vendor shall check description, UoM, Qty, HSN / SAC, Tax% of Invoice with respect to PO and Invoice shall contain ARAI GSTN, Vendor GSTN, PAN, Bank details. The invoice / bill shall be duly stamped and signed / digitally signed. Vendor shall submit copy of e-Invoice (with legible / scannable QR code), wherever applicable, as per Govt. Notification.

4.2 Submission of Material Invoice / Bill for ARAI Kothrud with material to Consignee/Reporting Officer: Shri Ravindra Subhash Kulkarni, ARAI # Stores, S. No. 102, Vetel Hill, Off Paud Road, Kothrud, Pune # 411038. Phone: 020-30231670 / 67621670, Email: kulkarni.sto@araiindia.com

4.3 Submission of Material Invoice / Bill for ARAI-Chakan with material to Consignee/Reporting Officer: Shri Prashant P. Kathe, ARAI # HTC Stores, Email: kathe.sto@araiindia.com

4.4 Submission of Service Invoice / Bill for ARAI Kothrud and Chakan to Purchase Officer: Shri Sandip Surendra Sabnis, ARAI # Purchase, S. No. 102, Vetel Hill, Off Paud Road, Kothrud, Pune # 411038. Phone: 020-30231660 / 67621660, Email: sabnis.pur@araiindia.com

5.CARRIAGE:

No charges will be allowed for carriage or packing, unless specifically mentioned in the Purchase Order.

6.VARIATION IN TAXES, DUTIES & LEVIES:

The Prices in purchase order are fixed for the duration of order. However, statutory variation, if any, shall be adjusted on either side.

7.TRANSIT INSURANCE

All the GOODS under transit shall be covered by VENDOR for all F.O.R- ARAI cases. For import cases, responsibility of marine insurance will be according to agreed Inco terms.

8.REJECTION:

Material (including software) received at ARAI is subject to inspection / testing as the case may be. In case it is found defective, the material (including software) is likely to get rejected. The rejected goods shall be taken back by the VENDOR by making necessary transport arrangements within 5 working days from the date of intimation of rejection for domestic supply and within 30 working days for overseas supply from the date of intimation of rejection. No payment will be made for rejected material (including software). If the goods are not removed within the stipulated time, ARAI shall remove the same and shall recover the cost of removal from the VENDOR.

9.JURISDICTION:

The performance against this purchase order shall be considered due in Pune for the purpose of jurisdiction and the courts at Pune shall have exclusive jurisdiction over all disputes which may arise.

10. GOVERNING LAW AND ARBITRATION:

- 10.1. The PURCHASE ORDER shall in all respects be construed and operated in conformity with the laws Of India.
- 10.2. All disputes of any kind arising out of supply, commissioning, acceptance, warranty maintenance etc. shall be referred by either party (ARAI, Pune or the bidder) after issuance of 30 days notice in writing to the other party clearly mentioning the nature of dispute to a single arbitrator acceptable to both the parties. The venue for arbitration shall be ARAI, Pune, India. The jurisdiction of the courts shall be Pune, Maharashtra, India.
- 10.3. Pending final resolution of any Dispute, VENDOR shall continue to perform its obligations under the PURCHASE ORDER.

11. UNDERTAKING:

All drawings, packages, samples, models etc. provided by ARAI shall remain the property of ARAI and cannot be used by the Vendor or contractor or sent to other parties for use to manufacture/sale to anyone other than ARAI.

12. WARRANTY:

During the Warranty period, ARAI is entitled to reject the goods. If any GOODS are found to be defective, it shall be promptly replaced or rectified by the VENDOR at its own cost (including the cost of dismantling and reinstallation) on the instructions of the ARAI and if removed from the ARAI premises for such purpose, shall be removed and re-delivered to the ARAI by the VENDOR at its own cost.

The VENDOR shall demonstrate all parameters as per specification(s) and any corrections and / or Rectification required shall be carried out by the VENDOR with consent of the ARAI.

13. LD:

13.1. In the event, VENDOR fails to supply the GOODS/SERVICES as per delivery schedule mentioned in this PO, LD @ 0.5% of basic Order Value of GOODS/SERVICES per week of delay or part thereof, subject to a maximum of 5% of total basic Order Value shall be levied for delayed deliveries.

13.2. For delays beyond ten (10) weeks, VENDOR shall write to the ARAI for approval/acceptance of GOODS prior to dispatching. In such case ARAI reserves the right to accept or reject the GOODS based on requirements. If the GOODS/SERVICES are accepted, rate of additional LD (beyond ten weeks) shall be decided by the Director, ARAI. Also, ARAI reserve its right to cancel the PURCHASE ORDER or the portion thereof. In case of such default by way of inordinate delay; and if so desired, to purchase the defaulted materials elsewhere at the risk and cost of VENDOR.

14. GST:

14.1. GST Tax Invoice shall either physically signed copy or digitally signed as required under the Sec 31 to 34 of the CGST Act 2017 read with CGST Rules relating to Tax Invoice. GST Tax Invoice or Debit or Credit note for supply of Goods or service or both shall contain all the requirements as mandated under Section 31 to 34 of the CGST Act. Vendor shall provide all necessary inputs, relating to Tax Invoice, Credit and Debit Note, as per CGST / SGST / IGST / UTGST Act and amendments from time to time. For GST payment, matching the invoices uploaded by the vendor on GST Portal is necessary.

14.2. Vendor shall agree to ensure correct, accurate and matched invoices and Returns uploading on GST Portal within due dates, as per specified GST Act.

14.3. Basic Price shall not include any taxes such as CGST, SGST, IGST and UTGST.

14.4. In view of Anti Profiteering Provisions, the reduction in the price has to be passed to us.

14.5. E-way Bill provisions as notified are to be complied with.

14.6. INDEMNIFICATION: The Vendor agrees for recovery made by us of any tax amount from him on account of any refusal of Input Tax Credit to us for any deeds which deprives us from availing the eligible credit.

15. E-WAY BILL:

Generation of e-way bill shall be responsibility of VENDOR.

16. EHOS POLICY:

The VENDOR agrees to conform to the ARAI Environmental, Occupational Health & Safety (EOHS) Policy and procedural requirements of Environmental Management System (EMS) & Occupational Health and Safety (OHS) systems of ARAI. Provider may obtain an information about ARAI Environment & Safety Requirements from the Safety Officer, Mr. R. D. Sawant Contact No. +91-20 30231254, email: sawant.qmd@araiindia.com (for ARAI-Pune) or Mr. R. D. Chaudhari +91-2135 396612, email: chaudhari.pas@araiindia.com (for ARAI-FID & HTC, Chakan).

17. ENVIRONMENTAL:

17.1 The External Provider shall ensure that it has an understanding of its obligations under the ARAI Environmental Management System and assumes responsibility for the consequences of departing from specified procedures.

17.2 Please ensure that packing material shall strictly conform to Environment (Protection) Act, 1986, Plastics Waste Management Rules, 2016 and Maharashtra Plastic and Thermocol Products (Manufacture, Usage, Sale, Transport, Handling and Storage) Notification, 2018 and other obligations as applicable.

17.3 All substances that are supplied to ARAI shall be free from OZONE Depleting Material as mentioned in the Ozone Depleting Substances Rule (as amended) and free from restricted Hazardous material.

17.4 The Material Safety Data Sheet (MSDS) of all hazardous i.e. any material that poses threat to human health and/or the environment, e.g substances having toxic, corrosive, ignitable, explosive, or chemically reactive characteristics shall

Regd. Office: S.No.102, Vetal Hill, Off Paud Road Kothrud, Pune-411038(India) Postal Address: P.B.No.832, Pune-411004(India)

Tel: +91-20-30231660/61/62/63/64/65/66 Fax: +91-20-30231104, Website: www.araiindia.com

be provided as per the Maharashtra Factories Rules

17.5 Ensure that your transport vehicle has valid PUC Certificate

18.SAFETY:

18.1 Depending on nature of work assigned under this PO, the External Provider shall observe and follow all the safety rules/ regulations and comply with work permit system of ARAI. It shall take every precaution that no accident or cause of threat to life and property takes place while executing the work assigned under this PO.

18.2 The External Provider shall ensure that his employees do not enter in any other area/s other than work place under this PO and shall further be responsible for all the acts, deeds, actions of his employees.

18.3 The External Provider is empowered to execute and ensure the adherence of compliance under the Factories Act 1948 and / or other applicable Laws for safety of his persons engaged and working for ARAI within its premises. ARAI by using its due diligence, to enforce the compliance of Factories Act 1948 and other applicable Laws, authorizes the External Provider to take care of his persons for their safety while working within ARAI premises.

19.Photography & Videography is strictly Prohibited in ARAI Premises.

20.ARAI is NO SMOKING organization.

21.Littering is strictly prohibited to keep the ARAI premises clean.

22.ARAI CODE OF BUSINESS CONDUCT AND ETHICS (CBCE): Attention

of VENDOR is drawn to CBCE which ARAI follows rigorously in its business. Compliance to the said code of conduct and ethics is mandatory and is essential part of this PO.

Vendors, service providers, external professionals and agents serve as an extension of ARAI. Their conduct and behavior while carrying out business dealings with ARAI can have an impact on ARAI and its reputation. For this reason, along with the applicable Legal Contractual obligations, they are expected to conduct their businesses in an ethical manner.

23.All disputes of any kind arising out of supply, commissioning, acceptance, warranty maintenance etc. shall be referred by either party (ARAI, Pune or the VENDOR) after issuance of 30 days notice in writing to the other party clearly mentioning the nature of dispute to a single arbitrator acceptable to both the parties. The venue for arbitration shall be ARAI, Pune, India. The jurisdiction of the courts shall be Pune, Maharashtra, India.

24.Termination for Material Breach. Each party may terminate this agreement with immediate effect by delivering notice of the termination to the other party, if the other party fails to perform, has made or makes any inaccuracy in, or otherwise materially breaches, any of its obligations, covenants, or representations made under the contract/P.O./Tender/offer.